SAFE_NORTHGATE

Instrument terms

Holder: competing_lead.

issue_date: 2024-10-02.

purchase_amount: 900000.

cap: 110000000.

cap_basis: Q.

family: post.

discount: 0.

mfn: True.

Defined Events and Administration

safe northgate separately defines an equity financing, liquidity event, dissolution event, conversion security, company capitalization, and the investor's purchase amount.

The treatment applicable at an event follows the signed SAFE's own cap, discount, family, and amendment provisions rather than a later spreadsheet recap.

Notices, assignment, governing law, counterpart execution, and amendment consent complete the operative instrument and remain effective with its economic terms.

Clause 1. The Instrument and the Order in Which Its Clauses Are Read

This instrument is an agreement between Helioscope Robotics, Inc. and Northgate Crossing Capital, L.P. for the future issue of equity. It is not debt, carries no interest and has no maturity. It is on the post-money form and its calculations are made on that basis. It is unusual among the Company's instruments of this kind in carrying the most-favoured-nation provision in Clauses 6 to 12.

The clauses are read in the following order where they bear on the same question. The most-favoured-nation provision, once an election under it has taken effect, governs the economic and conversion terms of this instrument in place of the terms it displaces. Clause 5 governs the Valuation Cap until such an election takes effect. The remaining clauses are unaffected by an election.

The Investor is a fund that later took part in the Company's Series B process as a prospective lead and did not become the lead. Clause 13 addresses the position that arose from that participation. Nothing in Clause 13 affects the operation of the most-favoured-nation provision, which the Investor holds by reason of this instrument and not by reason of any later negotiation.

Clause 2. Equity Financing

On the closing of an Equity Financing this instrument converts into shares of preferred stock, and the Investor pays nothing beyond the Purchase Amount already paid. Equity Financing means a transaction, or a series of transactions on substantially the same terms, in which the Company issues preferred stock at a fixed valuation for the principal purpose of raising capital.

The number of shares issued is determined as the conversion particulars provide, applying whichever of the Valuation Cap in Clause 5 and the term set adopted under the most-favoured-nation provision is then operative. The Company shall deliver the calculation, certified by an officer, at least ten Business Days before the expected closing, and shall identify in it which basis it has applied and why.

The Investor shall execute the agreements the purchasers of the new series execute and shall be bound by them from the closing. It is not obliged to invest new money as a condition of conversion, and the Company shall not condition the issue of the conversion shares on such an investment.

Clause 3. Liquidity Event

On a change of control, an initial public offering or a direct listing, the Investor is entitled to the cash amount or the number of shares of common stock the conversion particulars produce, determined immediately before the event. Where cash consideration is available the Investor may elect between the two; where it is not, the Investor receives shares.

An election is made by notice within the period the particulars allow and is irrevocable once given. The Company shall not close a transaction of this kind without providing for the Investor's entitlement, and shall not agree with a counterparty that this instrument survives the closing unless the Investor has consented in writing.

The entitlement ranks with the entitlements of holders of the Company's other instruments of this kind and ahead of common stock, and behind the Company's indebtedness. Where the Company has issued notes that convert at the same event, those notes are paid or converted as debt instruments before this instrument is satisfied.

Clause 4. Dissolution Event

On a voluntary termination of operations, a general assignment for the benefit of creditors or a winding up other than in connection with a Liquidity Event, the Company shall pay the Investor the Purchase Amount out of the assets available for distribution to stockholders, before distributing any of them to holders of common stock and after providing for creditors.

If those assets are insufficient to pay every holder of an instrument of this kind, the assets are shared among them in proportion to their Purchase Amounts. The Investor is not a creditor in respect of the Purchase Amount, may not prove for it as a debt, and may recover nothing.

Clause 5. The Valuation Cap Before Any Election Takes Effect

Until an election under the most-favoured-nation provision takes effect, this instrument converts by reference to the Valuation Cap stated on the signature page, applied to the capitalisation measured on the post-money basis the capitalisation particulars describe. There is no discount to the price paid by purchasers of new money in the Equity Financing.

The Cap stated on the signature page was agreed at a time when the Company had recently completed a priced round, and the Investor accepted a Cap at a level that reflected that round rather than the Company's earlier valuation history. The Investor obtained the most-favoured-nation provision in the same negotiation, and the two terms were agreed together as the price of the Investor's subscription.

If an election takes effect, the Cap stated on the signature page ceases to apply to the extent the adopted term set displaces it, and the Company shall record in its register that this instrument now converts on the adopted basis. The signature page is not amended by the election; the election is recorded separately and is read with the signature page.

Clause 6. The Most-Favoured-Nation Provision: Instruments Within Its Reach

If, during the period described in Clause 7, the Company issues a convertible instrument of a kind described in this Clause on terms more favourable to its holder than the terms of this instrument, the Investor may elect to take the benefit of the term set of that instrument in place of the corresponding terms of this one, on and subject to Clauses 8 to 12.

The provision reaches a convertible promissory note and an agreement for the future issue of equity, whether the latter is on the pre-money form or the post-money form. It does not reach the issue of preferred stock in a priced financing, the grant of an option or a restricted stock award under an employee plan, the issue of a warrant, or the issue of an instrument to a lender as consideration for a facility.

The reach of the provision is stated in the reach particulars filed with this instrument, which identify by category the instruments the Company and the Investor agreed are within it and those they agreed are outside it. Where the particulars and this Clause differ as to a category, the particulars govern.

Annex 1 - Categories of instrument inside and outside the reach of the provision

Category of issuance	Within the reach	Reason recorded by the parties	Copy owed to the Investor	Comparison required
Convertible promissory	Yes	A convertible instrument	Yes	Yes

Category of issuance	Within the reach	Reason recorded by the parties	Copy owed to the Investor	Comparison required
note		with economic terms comparable to these		
Agreement for future equity, pre-money form	Yes	A convertible instrument of the same family	Yes	Yes
Agreement for future equity, post-money form	Yes	A convertible instrument of the same family	Yes	Yes
Preferred stock in a priced financing	No	A priced round is the event this instrument converts into	No	No
Option or restricted award under a plan	No	Compensation rather than an investment instrument	No	No
Warrant issued with a credit facility	No	Consideration for lending rather than a convertible investment	No	No
Warrant issued for commercial performance	No	Consideration for performance rather than for money	No	No
Instrument issued on a bridge to insiders	Yes	A convertible instrument issued for money	Yes	Yes
Instrument issued in a currency other than dollars	Yes	Currency does not change the character of the instrument	Yes	Yes
Instrument issued to an individual adviser	Yes	A convertible instrument issued for money	Yes	Yes
Amendment of an instrument already outstanding	Yes, as to the amended terms	An amendment can confer a more favourable term	Yes	Yes
Assumption of an instrument on an acquisition	No	Not an issuance by the Company for money	No	No

Operative instrument term 1

Holder: competing_lead.

Dissolution, amendment, and notice provisions qualify this SAFE term.

Clause 7. The Window Within Which a Later Instrument Is Compared

The provision applies to an instrument issued on or after the date this instrument was signed and on or before the end date stated in the window particulars. An instrument issued before this instrument was signed is outside the provision, whatever its terms, and the Investor has no right to compare its own terms with an instrument that was already outstanding when it subscribed.

The window closes on the earlier of the end date stated in the particulars and the termination of this instrument. An instrument issued after the window closes is outside the provision even if the Company had begun to negotiate it before the window closed; the date of issue governs and not the date negotiation began.

If the Company issues an instrument within the window and the Investor becomes aware of it only after the window has closed, the Investor may still elect in respect of that instrument, provided it elects within the period Clause 9 allows after it receives the copy Clause 8 requires. The closing of the window bars later issuances, not a late-delivered copy.

Clause 8. The Company's Covenant to Deliver Copies

The Company shall deliver to the Investor a complete copy of every instrument within the reach of this provision that it issues during the window, together with the particulars attached to that instrument, within fifteen Business Days of the issuance. A copy is complete only if it includes every schedule and particular to which the instrument refers.

The Company shall not deliver a summary in place of a copy, shall not redact an economic term, and shall not withhold a copy on the ground that the holder of the later instrument has asked it to. It may redact the holder's contact details and any provision that relates solely to that holder's internal arrangements, and shall identify each redaction on the face of the copy.

A failure to deliver a copy does not shorten the Investor's right to elect and does not validate the later instrument's terms as against the Investor. The Investor's remedy for a failure is specific performance and the costs of obtaining it, and its right to elect runs from the delivery of the copy however late that delivery is.

Operative instrument term 2

issue_date: 2024-10-02.

Dissolution, amendment, and notice provisions qualify this SAFE term.

Clause 9. Making an Election: Form, Time and Irrevocability

The Investor elects by notice in writing to the Company, identifying the instrument whose term set it adopts and stating that it adopts that term set as a whole. The notice must be given within twenty Business Days of the Investor's receipt of the complete copy of that instrument, and an election given after that period is ineffective unless the Company agrees in writing to accept it.

An election is irrevocable. The Investor may not withdraw it, may not elect again in respect of the same instrument, and may not revert to the terms the election displaced if the adopted terms later prove less advantageous than they appeared. The Investor may, however, elect in respect of a different instrument issued later in the window, and a further election displaces the term set adopted by the earlier one.

The Company shall acknowledge an election within five Business Days, shall record it in the register of its convertible instruments, and shall prepare the election particulars described in Clause 12. The election takes effect on the date the Investor's notice is given and not on the date the Company acknowledges it.

Annex 2 - Procedure from issuance of a later instrument to an effective election

Step	Actor	Period allowed	Document produced	Consequence of failure
Issue of an instrument within the reach	Company	Not applicable	The instrument and its particulars	Not applicable
Delivery of a complete copy	Company	Fifteen Business Days	Copy with redactions identified	Specific performance; election period runs later
Acknowledgement of receipt	Investor	Five Business Days	Written acknowledgement	None; receipt may be proved otherwise
Comparison of the two term sets	Investor	Within the election period	Investor's own analysis	Not applicable
Request for clarification	Investor	Within the election period	Written questions	Company must answer
Company's answer	Company	Five Business Days	Written answer	Election period extended by the delay
Notice of election	Investor	Twenty Business Days from the copy	Election notice	Right lapses for that instrument
Acknowledgement of the election	Company	Five Business Days	Written acknowledgement	Election still effective
Preparation of the election particulars	Company	Ten Business Days	Election particulars	Register entry corrected later
Entry in the convertible register	Company	Ten Business Days	Register extract	Register corrected later
Notice to the Company's auditors	Company	At the next reporting date	File note	Reporting corrected later
Application of the adopted terms at conversion	Company	At the closing	Officer's certificate	Calculation corrected before closing

Clause 10. Whole Term Set Adoption, and the Prohibition on Selecting Terms

An election adopts the whole of the economic and conversion term set of the later instrument. The Investor may not adopt one term of that instrument and retain the corresponding term of this one. If the later instrument's term set is in some respects less favourable than this instrument's, the Investor takes the less favourable terms with the more favourable ones or does not elect at all.

The term set comprises the valuation cap and its basis, any discount, the capitalisation basis on which the cap is applied, the treatment of the instrument on a liquidity event and on a dissolution, and any provision that alters the price or the number of shares the holder receives. It does not comprise administrative provisions, notice addresses, transfer restrictions, representations or governing law, which continue to be governed by this instrument.

The parties adopted the whole-set rule because a right to select terms across instruments would give the Investor a better position than any actual holder of any actual instrument, which is not what a most-favoured-nation provision is for. The Investor accepted the rule expressly and acknowledged that it may make an election unattractive even where a single term of the later instrument is more favourable.

Clause 11. The Strictly-More-Favourable Test

The Investor may elect only in respect of an instrument whose term set is strictly more favourable to its holder than the term set of this instrument. A term set that is equally favourable does not give rise to a right to elect, and a term set that is more favourable in one respect and less favourable in another is compared as a whole and not term by term.

The comparison is made by the Investor in the first instance. If the Company considers that the term set the Investor has adopted is not strictly more favourable, it shall say so in its acknowledgement, stating its reasons; the election stands unless the Company establishes that the test is not met, and the burden of establishing that is on the Company.

A dispute about the test is referred, at the request of either party, to a valuation or accounting firm that neither party has instructed in the preceding two years, whose determination binds both parties as to the comparison but not as to the construction of this instrument. Each party bears its own costs and the parties share the firm's fees equally.

Operative instrument term 3

purchase_amount: 900000.

Dissolution, amendment, and notice provisions qualify this SAFE term.

Clause 12. The Election Made Under This Provision

The Company issued an instrument within the reach of this provision during the window, delivered a complete copy of it to the Investor as Clause 8 requires, and received from the Investor a notice electing to adopt the whole of that instrument's term set. The Company acknowledged the election and recorded it in the register of its convertible instruments.

The instrument whose term set was adopted, the date of the Investor's election notice and the terms comprised in the adopted term set are recorded in the election particulars filed with this instrument. Those particulars, and not this Clause, state what the adopted terms are; this Clause records only that an election was made and that it took effect.

From the date the election took effect this instrument converts on the adopted basis, and the Company shall apply that basis in every calculation it prepares under Clause 2. An officer's certificate delivered at a conversion shall identify the adopted basis, shall refer to the election particulars, and shall state that the Cap on the signature page has been displaced to that extent.

Annex 3 - The election record kept for this instrument

Record	Prepared by	What it establishes	Where filed	Available to the Investor
Copy of the later instrument as delivered	Company	That the copy was complete and when it was delivered	Convertible records	Already held
Investor's acknowledgement of receipt	Investor	The date from which the election period ran	Convertible records	Copy on request
Clarification questions and answers	Both	Any extension of the election period	Convertible records	Copy on request
Election notice	Investor	That a whole-term-set election was made and its date	Convertible records	Already held
Company's acknowledgement	Company	That the Company recorded the election	Convertible records	Copy on request
Election particulars	Company	The instrument adopted and the terms comprised in the set	Filed with this instrument	Copy on request
Counsel note on the whole-set rule	Company counsel	That the election was not a selection of single terms	Legal file	Not available
Register entry as amended	Company secretary	That the register shows the adopted basis	Convertible records	Extract on request
Officer's certificate at	Chief Financial Officer	The basis actually applied	Convertible records	At conversion

Record	Prepared by	What it establishes	Where filed	Available to the Investor
conversion		at the closing		
Note to the auditors	Chief Financial Officer	That the reporting reflects the adopted basis	Finance file	Not available
Record of any dispute on the test	Both	Whether the strictly-more-favourable test was contested	Legal file	Copy on request
Superseded calculation, if any	Chief Financial Officer	That a pre-election calculation was replaced	Convertible records	Copy on request

Clause 13. The Investor's Participation in a Later Financing Process

The Investor took part in the Company's later financing process as a prospective lead investor and delivered a written proposal, which the Company did not accept. Its participation was on the footing that it held this instrument, and the Company made no undertaking to it about the treatment of this instrument in the financing.

The Investor shall not use information it received in that process in exercising its rights under this instrument, and shall not treat a document it received as a prospective lead as a copy delivered under Clause 8. A copy delivered under Clause 8 is a copy the Company identifies as such, and the Investor's rights under Clauses 6 to 12 run only from such a copy.

The Company's rejection of the Investor's proposal is not a breach of this instrument, does not give the Investor any claim, and does not affect the most-favoured-nation provision. The Investor acknowledges that the Company was free to accept another proposal and that this instrument gave it no preference in the process.

Clause 14. Representations of the Investor

The Investor represents that it is an accredited investor (17 C.F.R. § 230.501), that it subscribed for its own account for investment, that it has the knowledge and experience to evaluate the risks of the investment, and that it can bear the loss of the whole Purchase Amount. It made its own investigation and relied on no statement of the Company outside this instrument.

The Company issued this instrument in reliance on those representations and on the exemption available for a limited offering to accredited investors (17 C.F.R. § 230.506(b)), without any general solicitation. This instrument and any security issued on its conversion are restricted securities and may not be resold except under a registration or an exemption. (17 C.F.R. § 230.144)

The Investor shall notify the Company if a representation in this Clause ceases to be accurate. A change in the Investor's status does not affect an election already made but may prevent the Company from issuing conversion shares until the Company has satisfied itself that an exemption remains available.

Clause 15. Transfer, Assignment and the Legend

The Investor may transfer this instrument to an affiliate under common management or to a successor fund managed by the same manager, on notice to the Company and on the transferee's written assumption of the Investor's obligations, including its obligations under Clauses 10 and 13. Any other transfer requires the Company's prior written consent.

A transferee takes the most-favoured-nation provision with this instrument, including the benefit of any election already made and the burden of the whole-set rule. A transfer does not restart the window, does not revive an election period that has expired, and does not entitle the transferee to a copy of an instrument issued before the transfer that the Company has already delivered to the Investor.

The Company may assign this instrument on a reincorporation to change its domicile and to a successor that acquires substantially all of its business and assumes this instrument in writing. A security issued on conversion bears the Company's restrictive legend and a notation of the agreements to which the holder has adhered.

Clause 16. Notices, Amendment, Governing Law and Counterparts

Notices are given in writing to the addresses in the notice particulars, are effective on delivery, and may be given by electronic mail with written confirmation of receipt. A notice delivering a copy under Clause 8 shall state that it is

given under that Clause and shall list the documents enclosed, and a notice that does not do so does not start the election period.

This instrument may be amended only in writing signed by both parties. An election under the most-favoured-nation provision is not an amendment and does not require the Company's signature; it takes effect on the Investor's notice and is recorded rather than executed.

This instrument is governed by the law of the State of Delaware without regard to its conflict-of-laws rules, may be executed in counterparts, and is severable. Its particulars, including the reach particulars, the window particulars, the capitalisation particulars, the conversion particulars and the election particulars, form part of it.

Clause 17. How the Provision Is to Be Read in Case of Doubt

The most-favoured-nation provision is to be read as protecting the Investor against the Company issuing a better instrument to someone else during the window, and not as giving the Investor the best of every instrument the Company has ever issued. Where its language admits of both readings, the first is to be preferred.

A doubt about whether an issuance is within the reach of the provision is resolved by reference to the reach particulars first, to Clause 6 second, and to the purpose stated in the preceding paragraph last. A doubt about the period is resolved by reference to the window particulars and to the date of issue of the instrument in question.

Neither party may rely on a summary of this provision, an internal note describing it, or a description of it given in a diligence response, as an aid to its construction. The provision is construed from this instrument and its particulars alone.